COUNTY COUNSEL IMPARTIAL ANALYSIS OF
LOS BANOS UNIFIED SCHOOL DISTRICT MEASURE C

This bond measure analysis is provided in accordance with Elections Code section 9500, *et seq*., The California Constitution and Education Code authorize a school district's issuance of general obligation bonds for specific school district purposes. This Measure authorizes Los Banos School District ("District") to issue bonds in amount of $99 million to raise money for the improvement, upgrade and renovation of the District's school facilities and classrooms.

Issued bonds would be repaid by tax levies on non-exempt taxable property within the District. There is no assurance or guarantee the District will issue the maximum amount of the bonded indebtedness authorized; or that beyond revenues generated, the proposed projects will be funded by matching State funds sufficient to complete them.

According to the Tax Rate Statement submitted by the District, the best estimate of the highest *ad valorem* tax which would be levied on taxable property to repay the bonds over their term is $32.00 per year per $100,000 of assessed value. The best estimate from official sources of the total debt service, including principal and interest, is that $177,966,209 would be required to be repaid if all the bonds are issued and sold. The final year in which the tax is anticipated to be collected is fiscal year 2059-2060.

No proceeds authorized by this Measure can be used for District salaries or administrative and operating expenses. Proceeds can only be used for the purposes stated in the Measure. Both annual and independent financial audits and oversight by an appointed citizen's committee for performance, utilization, and compliance must be conducted under the Measure and by law. The citizen's committee cannot include any District vendors or employees.

Approval of this Measure requires the affirmative vote of 55% of the qualified voters.

A "YES" vote is a vote in favor of authorizing the Los Banos Unified School District to issue and sell up to $99,000,000 (ninety-nine million dollars) in general obligation bonds.

A "NO" vote means the voter is against authorizing the Los Banos Unified School District to issue and sell up to $99,000,000 (ninety-nine million dollars) in general obligation bonds.

This measure is placed on the ballot by the Los Banos Unified School District.

Merced County Counsel
Forrest W. Hansen

/s/ Thomas E. Ebersole, Assistant County Counsel